

March 15, 2025

Re: Request For Information (90 FR 9088)

Networking and Information Technology Research and Development (NITRD) National Coordination Office, National Science Foundation (90 FR 9088)

To Whom It May Concern,

On behalf of America's 3,069 counties, parishes, and boroughs, the National Association of Counties (NACo) thanks the White House Office of Science and Technology Policy for the opportunity to comment on the request for information from public stakeholders on the development of a national artificial intelligence action plan in concert with Executive Order 14179 titled *Removing Barriers to American Leadership in Artificial Intelligence*. Counties, as direct owners and operators of critical infrastructure and providers of essential local government services, have a vested interest in shaping artificial intelligence policy, resources and intergovernmental information-sharing to ensure responsible adoption of the technology in public services, operations and the workforce.

NACo is the only national organization representing America's 3,069 county governments. Counties provide vital public services to over 300 million residents across the nation, including the administration of the nation's elections and the provisioning of emergency response services. Counties are also major owners of critical physical infrastructure, including 45 percent of public road miles, 38 percent of bridges, more than one-third of public airports, and 40 percent of public transportation systems.

NACo's Artificial Intelligence Exploratory Committee produced its seminal report, the [AI County Compass](#), in July 2024 to further explore the role of generative artificial intelligence for local governments. The comprehensive report serves as a core resource in providing education and guidance to counties seeking to learn more about generative artificial intelligence and how to responsibly integrate the technology into different operations and services.

In concert with the findings of NACo's Artificial Intelligence Exploratory Committee and other policy priorities, counties urge the inclusion of seven key action items listed below in the nation's artificial intelligence (AI) action plan to ensure comprehensive and equitable implementation.

1. **Establish an Intergovernmental Governance Structure:** Counties support establishing an intergovernmental governance structure that addresses the various

uses of generative AI across different sectors. This structure will facilitate better monitoring and regulation of AI technologies, create a system for threat monitoring and analysis, and ensure that intergovernmental partners can remain informed and abreast of the rapidly burgeoning AI sector. This governance structure can be the creation of a new advisory committee or re-purposing of an existing advisory committee with required local government participation dedicated to AI, as well as other public and private entity membership. The administration should also immediately consider re-instating funding for previously existing intergovernmental security information sharing regimes, such as the Multi-State Information Sharing Analysis Center (MS-ISAC) and the Election Infrastructure Information Sharing Analysis Center (EI-ISAC), that proved invaluable for counties across the country. The MS-ISAC and EI-ISAC both offered novel content and technical assistance for small and rural counties that is essential to fostering a collaborative, intergovernmental approach to cybersecurity.

2. **Support Workforce Development Funding Initiatives Geared Towards Artificial Intelligence:** Counties urge the provision of direct funding assistance or agency resource development to promote digital literacy and workforce skills in AI for the workforce. This funding would support counties, particularly small and rural ones, and key community anchor institutions in bridging the digital divide and fostering workforce development initiatives that are responsive to the ever-evolving landscape of technological innovation in the workplace.
3. **Improve Support Mechanisms for Local Compliance:** Counties are managing an increased burden with respect to funding technology upgrades and must dedicate increasing staff and work hours to priorities ranging from making security improvements to meet cybersecurity insurance requirements to corralling critical infrastructure and utility partners to upgrade existing on-premises infrastructure to meet security requirements, to name a few. As technology continues to be integrated into public sector operations and constituent services and programs, counties call for the executive branch to consider developing new programs at the agency and sub-agency level that can support local agency and government entities and recipients seeking to offer services or enhance operations through AI by supporting modernization efforts and streamlining reporting requirements for cybersecurity incidents and breaches.
4. **Elections Administration Support:** As principal administrators of elections, counties are at risk of facing significant challenges posed by generative AI. Counties request increased funding and technical support to mitigate the risks of AI-driven disinformation and ensure the safe administration of elections, including through the preservation of technical support programs for counties at the Cybersecurity Infrastructure and Security Agency (CISA) and the Elections Assistance Commission (EAC).

5. **Create and Disseminate Consumer Protection Resources:** Counties support strengthening of funding and oversight authority at independent agencies which regulate critical infrastructure areas and oversee consumer protection initiatives, such as the Federal Trade Commission (FTC) and the Federal Communications Commission (FCC). Such funding and oversight authority designations can help to combat negative use cases of AI, such as AI-generated robocalls or other consumer fraud activities. These measures will help protect local governments and residents by keeping critical infrastructure secure and disincentivize bad actors from utilizing AI to harm consumers.
6. **Promote Transparency and Disclosure Requirements for Public Sector Vendors That Protects Proprietary Information:** Counties advocate for the establishment of guidelines at the federal, state and local levels that increase transparency in the use of GenAI models for all vendors associated with the public sector, without imposing onerous requirements on developers of AI models. Furthermore, procurement guidelines for AI solutions in the public sector should be crafted by an intergovernmental, public and private sector committee that seeks to balance transparency in the use of AI, disclosures on the use of data, and robust security measures to protect services and operations.
7. **Support Public Sector Adoption of Data Privacy Standards:** Counties emphasize the importance of adopting robust data privacy and governance standards across all levels of government. Counties hold sensitive data and require standards to minimize security risks. The federal government should pursue guidelines on data privacy practices in the public sector that can be disseminated to state and local governmental entities, without preempting existing state laws or local guidelines.

In conclusion, we believe that these policy priorities are essential for the responsible and ethical use of AI technologies in counties across the nation. We urge you to consider these recommendations and support the necessary legislative and regulatory measures to achieve these goals.

Thank you for your attention to this important matter.

Sincerely,

Matt Chase
CEO/Executive Director

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